Understanding the sealing & unsealing process for Docket Clerks

UX Team - Research Synthesis

KEY

- ● Participant 002
- ● Participant 006
- ● Participant 008
- ● Participant 010
- ● Participant 012
- ● Participant 014

Insight

Research Team Internal Note, Question or Comment

Theme

Data point

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★ Key Quote

Starting a case in Tax Court: A party who files a petition in response to an IRS notice of deficiency, notice of determination, or notice of certification is called the petitioner. The Commissioner of Internal Revenue is referred to as the respondent in Tax Court cases.

Judge orders unsealed case to be sealed

Dockett Clerks review documents and redact sensitive information

Bright Spots

Sealing process is pretty straight-foward and easy in the UI and users anticipate it will be as easy to unseal when that is available.

UI is 'straightforward' for sealing process

[most liked] It's pretty straightforward. You click on it, it's sealed, well right now I can't unseal anything, but I'm pretty sure when it's fixed, we'll be able to just click on something, and it'll be unsealed too. 002

The the most thing I like about sealing the cases and unsealing them is that it's just, it's easy. It's literally right there in the overview section. It has a cute little lock on there. I love icons, I'm that person. So I'm like, Alright, cool. And that's, it's so easy, everything is sealed perfect. 012

The sealing process is easy, you just just click a button and everything is sealed. You don't have to go through anything.

006

[has ease of sealing changed in DAWSON] Not no, not really. Honestly. I would say like as far as visually sealing cases is easier. The process in general is easy if you ask me because you can see it more. It's just so clear on Dawson that the case is sealed versus like... Okay, so a good example would be an issue like back in Blackstone if I messed up and I didn't realize the case was sealed and then I served something that would be more of a bigger issue because we had sealed service where, like, it was in a double envelope, and then we sent it to the parties, and we had to indicate on the envelope like this is confidential. Versus now, when we have sealed things,[the] respondent is getting, ...what we sealed... I don't know if I'm doing a good job of explaining it, but it's easier is what I'm trying to say as far as service wise, but processing, it's pretty much the same. 012

So, but DAWSON so far has been great. And I love what we're able to do versus how we started. It's improved so much. 012 ★

The visual feedback of having the screen appear 'red' when a case is sealed has been very helpful and an improvement from Blackstone's use of the red lock icon.

Like the visual feedback in Blackstone and DAWSON that indicates a case is sealed/locked

[how to know when done] If you press the or click on the seal button, and now everything becomes red you know that it's sealed. And I believe in Blackstone, they had a little lock, a red lock and so we know that it's sealed. 002

[system gives visual feedback by color?] Yes 002

Yeah [cover letter still says the person's name], but all that would be sealed so they would be unable. All these documents, like in Blackstone we had a lock, and those are the ones... if you look back at like an old case... I have a docket number if you want to look at it later that you can see where in Blackstone, it put like a red lock on it and they're still there, but those are the ones that were sealed in Blackstone. I can give you that docket number. I have a sheet laying here if you want to go back and look at that. It's 19589-19W. 010

[Does having red visual feedback make sense to you?] Yeah it does, it really does. 002

[does red tab work well to indicate sealed?] Oh, yeah, for sure because I'm visual. So if I see that red tab, I immediately know that this case was sealed, period. 012 ★

Visual design of the inbox is appealing

Likes inbox

I have no problem with the inbox. I love the way that looks. 012 ★

The ability to add notes to a trial has been well received.

Although the notes will no longer be needed for tracking sealed/unsealed documents once unsealing becomes available, it is still considered valuable tracking other information such as reminders to be on alert for documents arriving in the Sharepoint folder

Notes is still valuable even once sealing/ unsealing documents is available

[need notes option even after unseal documents is available?] At that point, after something has been unsealed I would say the notes section for that specific reason is not... we're not going to be using that. But it does help in other cases, because say that, a petitioner called and they're saying that I got trial on Monday, I sent in documents Thursday, you should be receiving them Friday, trial's on Monday, I would put that in the notes section saying, you know, look out for documents in the SharePoint folder listed for this date. You know, I will put a note there. So the notes section is very, very still valuable. For me, in my opinion. I think I could vouch for like two other people too. So yeah, we definitely need that. 012

I love the fact that we can add notes for trial. Like there have been a lot of good improvements for Dawson. I'm not even gonna lie. You guys have done great from the beginning. 012 ★

Ideal World

There are times where a particular document may need to be temporarily locked even though the case itself is not technically sealed. Would like to have a way to lock and unlock individual documents in the UI as well as ability to lock/ unlock all documents at once.

Need ability to unseal cases as this is currently absent in the UI. Users expressed this as a functionality they had in Blackstone but lost in DAWSON.

Currently docket clerks are having to seal the entire case when in reality they just need to seal the one document, however they do not have this option. This can cause unnecessary additional steps and inconvenience the users.

Clerks are currently using a 'note' workaround to follow up on individual documents since they cannot currently be locked/unlocked. There was expressed concern over the anticipation of a lot of work that will need to take place once this is fixed due to transferring over all the information from the notes.

Would like to both seal/unseal individual entries and cases in the UI

[ideal world solution] Well either highlight or have an icon beside it [document for locking/unlocking], just to know. Because even if it's not sealed, if a document isn't sealed, we would lock it. Like if a petitioner comes with a motion to seal a document, we would lock it, even though it's not actually sealed, it's in the process of either being sealed or not being sealed we would lock that one document. But we wouldn't seal the entire case. So again, if we locked it, then we have the ability to just unlock it and just keep the case either sealed or unsealed without having to go into each individual entry.

006 ★

[Would like to have ability to lock all documents at once?] But the ability to unlock it all also. If the case was a W case, and it's a whistleblower, and it's definitely sealed from the beginning, then we just would lock everything. [I would want] to lock the case or lock an entry.

006

Right, [in Blackstone] you would lock any entry that you wanted to.

006

But um, yeah, we just need a place where we can temporarily seal an entry and unseal an entry, as well as being able to seal the case in its entirety. So we basically need those three options to do that. 012

The thing that I like least about sealing, sadly, honestly, would just be the fact that we can't do individual entries. That's the only thing because there... I have a number of cases I can't even tell you the number but I have a number of them that just the certain entries are sealed and I cannot seal them. That's literally the only, that's the biggest con for me. 012

[ideal world] I feel like we should be able to seal individual entries based on whatever order or whatever motion that petitioner or respondent files, we should be able to seal individual entries. And we should be able to unseal individual entries. And we should be able to unseal cases. I don't think we can unseal it right now. At least I don't think so. So yeah, I think that would be so much better. 002 ★

[where to ideally seal and unseal in Dawson UI] Probably where the case information page or tag, because that's where you can go right now to seal the case. So right under case details. So if there was something where you coul--, because they have where you can seal the case, but I don't see anywhere where you could unseal it. So if you're trying to seal the whole case, right there, but if you're just sealing an individual entry maybe somewhere, when you click on Edit, it can give you an option to seal but also be able to unseal a document. 002

We have the Case Information tab. And we have an overview section, where we're able to seal the information in the overview part. So in that same section where it says overview, where it says seal, if we had a temporary seal option that had like an entry button where we could select the entry to seal that would help us out because then we have a section where we can seal an entry itself. That's the best way like, once you see it visually, I think you'll know you'll get a better idea. 012

[so in an ideal world, you could just focus on that individual document and not have to worry about sealing the whole case?] Exactly. 002

Since we don't have the ability to lock anything, so like you see how we could track a pending motion you saw that function? So I'm thinking like if we have like a simple drop down and under fill in spots that has the seal or unseal function right there that will be perfect because now we don't have to worry about going into the whole program just to lock one document during the beginning to lock everything. 008

So if we could have it like in a drop down with a pending, or even when the parties or when we enter our order as we fill in stuff we could say click for seal or unseal and each function between being filed electronically or process or do an order or notice to the court. 008

[UI for sealing] And I don't know if that you know, if that's something that you would put, I guess, under Actions, where the strike entry it. That's where I think it would make the most sense. I always do that I always hit the actual document instead of edit. Because the document information is in the first screen, the second screen is service and that's just who was served. So action makes the most sense, you know, it has, like, that's where we would put the ordered date. Like the judge ordered, you know, today's date that this be done. And that's either strike an entry or, you know, sealing a document. And we can put, you know, seal a document right there and then just save it. 014

So somewhere there [under the tab] like where it says actions, I would say, to me, that makes the most sense [to add the seal/unseal option]. We could seal something like in that area.

002

Yeah, I'd say so [makes sense to have all options under edit]. 002

[magic wand] Right now, it's being able to seal a single document, because I think that is our biggest drawback at this point. I mean, sometimes, you know, I forget, and I still look for sealing a document. 014

If we seal just the document in the system now [DAWSON] we just lock the whole case, seal the whole case, because there's no way to just do one document. In the previous one [Blackstone], we would definitely lock that one document. That way, the case could still not be sealed, it would just be that document.

006

For temporary seal, if we wanted to indicate that it's temporary, it could be like a different color, maybe like a blue, or orange or something that would stick out to say, "Oh, wait, this isn't just a permanent seal. This is a temporary seal." So if we have a color option, like because of the visual, I think that would help out a lot. So that when we take it off, we're not getting confused on removing a permanently sealed document versus a temporarily sealed document. 012 ★

[magic wand] For Dawson to be fixed so we could do that. Oh my goodness, because I don't look forward to when it gets fixed, but I do look forward to when it gets fixed. And the reason I say that is because there's so many like, individual documents, and it's gonna have to be a project to get everything fixed, since we're doing a workaround right now. And it's going to take a lot, because it's going to take a lot of reading, reading the record. And also, because we just got that note feature, where it actually shows that there's a note there or not. So I know everyone's not implementing that, because it's still new. So what happens to all the stuff that happened before then? So I think for now, just having it work, and for us to be able to, you know, have the power to unlock and unseal and seal documents, and unseal and seal cases would be fantastic. [already have ability to make notes] 002 ★

[ideal world] Just the ability to lock the individual entry and unlock it and seal and unseal. Right now we can't unseal anything so that's what we definitely need going forward.

006 ★

[temporary seal UI] Yeah, I think a lock for all the sealing options would be ideal. For the temporary seal right now we have just the seal option and the lock is red. 012 ★

Would like generic letter downloadable PDF

And I do have another one I know this is just for seal. But is there by any chance you can do a generic letter and PDF load? I deal with appellate stuff. And you see that USCA, but record on appeal, those are generic codes for the appellate work session for the appellate work. And I need a generic letter because I get letters from the Supreme Court that doesn't have to get service and it's a problem not being on a record and I need to know how to put that on and if I could get that done. 010

A clerk may sometimes get assigned notes from another clerk who is absent that day. In Blackstone, clerks were able to search for the absent clerk's name and transfer their notes into their own inbox as well as anything else that came to that inbox during the day would be forwarded to their own. Clerks were also able to sort them by level of importance. This feature has been lost in DAWSON however, which has created a lot of extra work since it must currently be manually tracked.

Ability to transfer notes from someones inbox into their own

[ideal world] I tell you what would be nice...right now, if I'm doing my own digit, and I get assigned somebody else's digit because they're out that day. And I have to go through the whole document. I mean, I can type in, you know, search for [name a]...search for [name a] and it'll pull her stuff up, but I can't click on it, and transfer it to my inbox messages, or to transfer just say, okay, transfer [name] to, because that was one thing that we can do in blackstone, and we could click on transfer. And we could say transfer [name a], you know [name b] and we transfer everything in her inbox to me. And anything that came in during the day would automatically come to me. So I'm not having to constantly go back and search because sometimes you get so caught up in what you're doing. You might miss something that's high priority.

014 ★

[do you need all items from their inbox?] Yeah. Because I mean, you know, with that sometimes, without looking at it, you can't tell exactly what it is, because I've had things come down... and that was another thing we used to have in Dawson [Blackstone], we actually had a little drop down box and you could pick whether it was high, normal or low importance. And it would automatically put that stuff to the top in the inbox Yeah, my messages in the inbox, so that we automatically knew... it's just like when you're looking in the document...you have all the ones that are set for trial that are in red at the top. It would do something similar to that in my messages, it would put everything that was high importance at the top of your file of our QC for our inbox. 014 ★

When Blackstone shifted to DAWSON, users lost the ability to link consolidated cases to one lead case. This has led to a longer time to process cases as clerks must now manually go into every case and update each one independently rather than having them all linked to the lead case as was done in Blackstone.

More efficient method of consolidating cases

So if we could have an option in the future for Consolidated cases to be done, kind of the same way [as Blackstone], if that's possible, that would be a lot better. Yeah, and it would be a time saver too, because it takes a lot of time to literally go in each case and do the same exact thing. And also make sure the record has changed as well. Because in Blackstone when we did something... like when we consolidate something, in one case, it transfers over. Just imagine like, how much we got to do to change the actual record, like serve it, make sure the case is sealed, we have to do so many extra steps. I feel like it's a little tough. 012

In a dream world, I would say that I wish that consolidated cases was fixed. And that everything could be linked together with one case. So like, if then you have 24, or 25, 26, 27 linked to it, we should be able to select from an entry link this so it's consolidated. In my dream world, that would be it. Because I've had a case with 15 cases. And I was just like, Man, I have to sit this one to the side. Or you know, do this one tomorrow morning when my brain is fresh. 012 ★

[ideal world] So I would literally just--the consolidation. That's it. That's really it. You guys are doing great. Really,That's it. Yeah, I think that's it. The consolidation. 012

Challenges

May also be helpful to have ability to sort by 'locked' or 'unlocked' documents

In DAWSON Clerks lost the ability they had in Blackstone where they could redact information. Instead, redactions can now be sent by the petitioner. This means that now if a petition was redacted and then there's an order to open the case, clerks no longer have the ability to redact the PII on the cover page. Instead, they create a redacted (twice redacted) document, which redacts everything except the cover page.

Inability to seal an individual document creates unnecessary steps and delays. Currently, if the entire case is sealed, then a respondent or anyone representing a petitioner or a counsel is unable to file entries of appearance in order to get into the case. Their only option is to file a paper entry that must be mailed in, scanned, and then sent to the docket clerks, thus resulting in significant delays.

Sometimes if a petitioner files a petition and forgets to redact PII, they may want that particular entry to be sealed and file an additional redacted petition. However since there is currently no option to seal individual entries, the entire case has to be sealed. As a result, now when the petitioner is serviced via paper service, it must be treated as a whistleblower case and have additional steps/precautions taken despite it not being a whistleblower case, which can be burdensome.

When it's time to unseal a document which has been sealed with the entire case, docket clerks are having to track seperately what document was sealed. This means the clerk must manually sort go through each entry, which can range from just a couple to several hundred or more, to try and find which document is the one that needs to be redacted. In blackstone, this was made easier as the document had a lock next to it and was therefore easily identifiable at a glance.

Sealing the entire case when only a specific document was requested to be sealed can also be confusing to petitioners who do not have a clear understanding of how the process works. It can be alarming when they request one document be sealed and then see that their entire case was sealed instead. This can lead to confusion.

Inability to seal/unseal individual documents in DAWSON can cause issues

We normally don't just seal cases, sometimes we seal documents. And in this system [DAWSON], you can't just seal one document out of like, 1000 documents, you have to seal the whole case. And that's an issue because the cases aren't always all the time unsealed. So that's an issue right there. That's the main issue.

006

I won't say it [having whole case sealed] has consequences later, because I think right now it's just a workaround so we all know what's going on. But it's a little frustrating, because it's just an extra step that has to be done when you're sending off service to that person. So it's a special service that has to be done and it has to be noted that way, you can't send it out regular at all. 002

The unsealing process is tedious and time consuming.

006

[sealed cases in blackstone vs dawson] The biggest difference at this point is, when we want to seal one document, we have to seal the whole case. There's no other way around it which makes it kind of difficult, because if the whole case is sealed, then if respondent can't file any entries of appearance, and anyone representing petitioner, if they have counsel, can't file an entry of appearance in order to get into the case, it has to be done in paper. So, particularly now, since a lot of us are working from home, it makes a big difference in how long stuff takes sometimes, because it has to be mailed in, it has to get to the court, it has to go to who scans it in, and then we get hold of it. So you know, it can take several days before anything is in a case. 014 ★

Right [can't currently lock just one document in DAWSON], because if we seal the entire case, then if you have 65 documents on that, you just seal one document, when it's time to unseal you'd have to have a record of what was sealed, because it's not the entire case. And you'd have to go back, if you didn't know which document it was, you'd have to go back through each entry to find out which one needed to be redacted. As opposed to just having that lock button right there and then you could just go up and see which document was locked.

006 ★

[Sealing cases Dawson vs blackstone] So in Blackstone, because it was a software base, we had a little more flexibility to manipulate an actual document, per se, versus in Dawson, if you do something in a specific section, it modifies the whole entire case. So we had a little bit more flexibility to kind of like customize a case in a sense versus whereas in Dawson, it's a little bit more restricted. 012

[cases other than whistleblower] In Dawson everything gets sealed, so some things that are sealed in Dawson that the whole case should not be sealed, an example is petitioner filed a petition they forgot to redact their social security number now they want it to be redacted. They want that to be sealed. So they'll file another one, a redacted petition. So since we can't just seal that one petition and keep it moving, the whole case has to be sealed which is kind of ridiculous because now, when the petitioner is serviced, if they are, if they're paper service, that means that there's an extra step that has to be done. We have to put double envelopes on things and all because it's a whistleblower, it has to be handled totally differently. So that's one example. 002 ★

[How is DAWSON different than Blackstone for sealing documents] We don't have the ability to seal individual documents, but we do have the added ability that they can receive, If they're electronic, they can receive their documents electronically. Once they're in the case, they can e-file, their redacted versions. We don't redact anything.They send the redacted documents. In Blackstone, we used to have the ability where we could redact like a cover sheet. So like, if you have a petition that was unredacted and a petition that was redacted, and then later on they do an order, and they're going to open the case back up, then we used to have the ability to just take and like draw a box around the caption because it's a redacted document, but you know, the caption has the person's real name on it. And we used to be able to do that, but now we can't do that. So now sometimes we have a Redacted Redacted document. Because it's redacted everything except for the cover page. 010 ★

Or if the Chamber's they say, hey, this is the only document in this case that needs to be sealed for whatever reason, maybe petitioner called and said, hey, there's something on there that I didn't want everyone to see. And the judge is like, Okay, well, we'll go ahead and seal that particular entry. If that happens, we have to seal the whole case. And it makes no sense. And then that can confuse the petitioners too, because a lot of times petitioners, they don't even know what they're doing. They're doing the best that they can with the information from the website. And then once you add something else to it, like, their whole case being sealed, they're going like, what is that? Like? Why? So it can be very confusing. 002 ★

[biggest pain point sealing/unsealing] Right now, it's not being able to seal just one document. You know, to me, that's something that I wish we had had back in the beginning, and I realized, you know, you can't have everything at once. And they've been prioritizing certain things over others. But that, I think, is one of the things that we need to [prioritize] and I mean, to tell you the truth I can't even tell you why this case is sealed that i'm looking at. 014 ★

We don't currently have the ability to unseal a case now. Because I had gotten something in a case, a document that a petitioner wanted sealed and I had to lock the whole case because we don't have the ability to seal an individual document. And then the judge said, he denied it, but I couldn't unseal that case because I don't currently have that ability in DAWSON. We only have the ability to seal just the whole case and not an individual document. 010

To add something to that, in Blackstone, we had the ability to seal the individual documents. If the entire case was sealed though, in this new system, they can e-file and they can get their documents electronically. In Blackstone we had to serve if the entire case was sealed, we had to make sealed service which is we would send it out in double sealed envelopes. The one inside would be marked personal and confidential. Usually in those situations are the whistleblowers, but there are some cases that are entirely sealed but the bulk of them are whistleblowers and they want to proceed anonymously. 010

So for instance, for sealed cases, you know, in Blackstone, we were able to seal a specific entry on the docket record versus Dawson, we don't have that capability yet, we can only seal the case, so that the whole case is sealed. So all the information inside is is protected. But we can't really seal a specific document, and have the whole entire case be open at the same time. Versus we could do that in Blackstone, if that makes sense. 012

Users have created a workaround with a notes feature due to inability to individually seal/unseal documents. Yet despite wanting the ability to seal/ unseal documents, there is some anxiety over what will happen once unsealing becomes available as there is currently no easy way to transfer notes.

Some users are supplementing with additional handwritten notes or notes on their desktop notepad, or sending themselves emails to keep track of their notes in addition to what's in the UI because at the end of the day they are held accountable for them.

Clerks are expected to check the notes section of cases where it should be documented whether the entire case is sealed or just a particular entry, but there is no formalization of this process, it's currently just an expectation.

Clerks unsure of how they will know which particular documents are going to be sealed and which are going to be unsealed once sealing/unsealing documents becomes available

Currently using a 'notes' workaround to track information due to inability to individually seal/unseal documents

So I was in a meeting ... and I told them about the notes tab, maybe we can, you know, put some stuff there. So that, you know, let's say you have a whole case sealed and it shouldn't be, we can put in that notes tab, 'hey, this is the only thing that's supposed to be sealed is this particular document, not the whole case'. And you can just kind of keep the document to keep the docket number on a notepad or maybe on your computer somewhere and have everything listed. But you can add to that note, saying, 'well, this whole case is still based on this motion or this. These two documents are sealed in this case, based on you know, these orders'. 002

[how keeping track of cases that are sealed/ unsealed] Man look, I tell you, I wish I did have an Excel sheet, I should have thought of that. But it's so much going on. So personally, me, now that we have the updated Notes section, that's how I've been keeping track. And I also have like a handwritten list in my notebook that I have and add to if I need to, if I find that a case has certain entries that need to be filled, that's how I'm keeping track. 012 ★

[So if you were able to individually seal and unseal documents, you would no longer need that?] No, no longer need that note tab for that particular reason. [it's just a workaround - would ideally prefer just the ability to lock and unlock] 002

[how are you keeping track of sealed documents] So we were told in a previous meeting for our department that we personally need to be keeping track of these cases. If everyone is doing that... I'm not sure. But that's what we were told. It's our accountability, because at some point or another cases are going to come back to us in another order, and we're gonna see 'oh, wait'. So now that there's a note section, thank God, thank you guys for putting a note section. Because now that's where our clerks and myself are noting that, 'okay, entry number 35, in this case is sealed, whole case is not sealed.' So now that we have a note section, and that has the little icon, whoever logs into that case, should be looking at the note screen to see what it says, to know that okay, when we go back, let me make a note of this. This case is partially sealed or whatever. That's what I've been doing. 012

Now, if I just look at a case, and there's a document sealed, what I'll do, because there's always going to be an order stating why that document has to be sealed. And so I'll look for, you know, I'll go and look for that order to see what's going on. And, you know, see why that particular document is sealed and not the whole case. 002

[interaction with sealed documents] So even though now we have for whistleblowers, the whole case is sealed, sometimes we'll get paper documents in that we have to upload and that particular document is sealed, but they'll have another document that's redacted and that one isn't sealed. So one issue that we kind of ran into in docket is how are we even going to know which particular documents are going to be sealed and which ones are going to be unsealed when all this stuff is taken care of with the sealed documents? 002 ★

[how keeping track of cases that are sealed/ unsealed] Some people are sending their selves email messages, so that they have it in their sent records. And they know and they'll go back to it. So everyone has I think their own little way as far as how they're keeping track, because we are going to be accountable for these at the end of the day. 012 ★

One of the other general things just as well, while we're talking about Dawson, what we're calling the notes screen, I'm sorry, under Blackstone, what we're calling the note screen in Dawson was the summary screen in Dawson. And when you clicked on that docket number, if there was anything in there at all, it popped up--that was the first thing you saw. So if there was a note for additional service, or if it's a sealed case and the addresses sealed,' the petitioner's address is at docket number blah, blah, blah'. Or when this document comes in judge does not want it filed, or judge wants it filed as... you know, those sorts of things so that you knew right off the bat, because until they added that little gold page for the notes nobody was looking at them. And I mean, nobody. Because I know I wasn't. I would forget, I'd say probably 99% of the time to look at that page. 014 ★

Since covid has resulted in telework, clerks are no longer able to work in the office with paper documents. This creates unique challenges in that clerks can no longer handle the physical paper documents and scan them in as they typically would.

Inability to work in office with paper documents

[issues with sealing process] The biggest problem of course is not being in the office. Being in office is...say, a document comes in paper, which it would if the case is sealed at this point, because it's a motion to proceed anonymously. Then we would get the paper in, we would scan it and put it into the case. And then we would send it over to ADC and tell them that this or if it's ADC, or if it's a judge's case, we send to the judge saying this has come in and it needs to be put in a sealed file. And then they take it and put it in a sealed file. Sometimes we do if the case is brand new, like if it was a brand new whistleblower we have as a petition then we put it in one of the gray folders for sealed files, and then send that sealed file over to ADC. 014 ★

Currently the methods used for redactions are time consuming and inefficient. Clerks must manually go through every case to file a redacted copy along with the unredacted copy that was put on the record. Redactions require going through with a very fine-toothed comb to remove any PII before it can be filed, which can be tedious.

Redactions are manual and time consuming

If a case starts off unsealed, and then they want to get it sealed, we have to go through all the documents that are on the record and redact them all so we could take off people's social security numbers or anything that's personal or lets people know outside of the court what's going on. So we have to do that so we have to file a redacted copy along with the unredacted copy that was put on the record. And if it's like 50 entries, we have to go through all 50 of those entries and it's very time consuming.

006 ★

We redact the copies that are on file [when sealing a case]. Well, the petitioner will respond or sends the redacted copies, and then we have to go back and put those beside the unredacted copies. So if there's 50 entries is like about 50 entries that we have to redact and along with the unredacted if the case wasn't sealed in the beginning.

006

Sealed is, I like this system [DAWSON] better because, we don't have to do that special service. And then another thing we have to do before the case is put back on, you know, in the public where they can pull the docket number, we have to make sure that that person's name like if there was a declaration by that person that that name doesn't appear on the docket record. So that's what he was talking about if we have to go through with a fine tooth comb and make sure this guy's name is not listed anywhere on that record. 010 ★

It's the same process [unsealing documents in blackstone compared to DAWSON], it's not just the paper but we'd have to make sure that everything is safe to be put on a record as far as public so we had to go through each entry and make sure that whatever that was sealed has a redacted copy on the record before we can file it.

006

Due to the challenging nature of whistleblower cases, only a few more experienced clerks handle them. These cases typically require redactions of PII which can be time consuming as some cases may have 100+ entries. Additionally, all parties involved in the case need to agree on all of the documents on filed that have been redacted. Filing these cases accurately is an intensive and time-consuming manual process for clerks.

Whistleblower cases are difficult

The whistleblowers cases, they're difficult. So that's why there's only a few people that kind of deal with them, the higher ups, but some of the docket clerks, we can go in there and QC things and send documents out, but sometimes the orders that the chambers or the attorneys will send out, they can be a little bit difficult to do. 002 ★

[what makes W cases difficult] Well, because what happens is if they file a motion to proceed anonymously, and they don't want their name anywhere on the case. And if it's granted, the whole case has to be sealed, and we can't have the person's name anywhere. So anywhere we see their name, we have to remove it and put whistleblower and then whatever the docket number is. And it takes a lot because let's say for instance, you already have like 100 entries in that case before that motion was granted, everything in there has to be sealed. And then what has to happen is the parties have to agree on all of the documents that was filed, they have to agree on redacted documents, and what they'll do is they'll send those in, attached to a stipulation and we have to pull everything apart and file it under that original filing. And so that is very tedious, and it's a lot of work. 002 ★

If the case is sealed, in my head, I automatically go and look at the docket number again, because it might have a W behind it. If I see that I'm like, Okay, well, this is a whistleblower case so it's a lot going on and I know it's sealed because it's a motion to proceed anonymously. 002

[thoughts on whistleblower cases] I would say out of those three issues like consolidated cases, whistleblower and sealing, whistleblowers, probably is the easiest one out of all those to handle, you just have to make sure obviously, you know, the rules for whistleblower cases, but everything else as far as the process, in my opinion, I would not touch that. I think that's fine. I really think that's fine. 012

We have to edit, Yeah [manually read through it], and then we have to edit it [sealed cases]. Usually, most of them are whistleblowers, but we do have some other sealed cases. But the bulk of them are whistleblowers, and they don't want their name out there. So like if we had 'declaration of john Jones' and john Jones was the petitioner we would just have to change it to petitioner on the docket record. 010

In Blackstone, clerks had the option to track redactions, which allowed them to check a box that marked an entry as redacted. This ability was removed in DAWSON, so clerks have had to type it out in an additional information box in parenthesis as an alternative way to track this information, which unnecessarily adds more time to an already lengthy process.

Inability to easily track redactions in UI reduces efficiency

Yes, I do [think redaction process could be improved]. If there could just be a basic option to check that something is unredacted because we also had that option in Blackstone, as I was referring to our type of dashboard that we had to where we can click on whatever we want to make sure it goes on in case. 012 ★

If we had an unredacted and redacted box, that would be helpful. Right now, the only thing that we do to make sure or to indicate that something is redacted or unredacted, we type it out in the Additional Information box in parentheses. And that's how we have it on our record now. So like I said, it's not really it's not an issue, but it's just more that we're typing out now in Dawson than we did before. Because we had that box that could be checked. 012 ★

[redaction box speeds up the process?] essentially, yes. 012

Currently there is no way to automate consolidating cases. This means that when there is a consolidated case, respondants and petitioners must file in each and every associated case. This can result in some cases getting missed by the petitioner/respondant which then requires the clerk to either have to upload the missing documents in those cases or tell the judge who may then strike the document and require the petitioner/respondant to come in with them again. This creates a lot of additional work for all involved and could be made easier if allcases were associated to the lead case.

Working in multiple cases simultaneously (for consolidated cases) creates a lot of extra and often duplicated work

So, if you have a consolidated case, that means you have maybe two or more petitioners, sometimes it gets up to like 20 people on a case, all individual docket numbers, but they filed a motion to consolidate because they want all their cases to be seen and heard at the same time. That means when that motion is granted, everything that's filed after that it's filed in every single case. Now it's not possible. So you have a consolidated case with five docket numbers, and respondant and petitioner have to file in each and every case. It is a huge problem, because you'll have them file in these three cases and in these two they didn't file so it was like, okay, what the heck. So we have to go ahead and upload it in those cases, or we have to tell the judge and what they might do is they'll strike the document and tell them to come in with it again. And it is a huge headache. It's a lot of extra, extra work. Whereas if everything was working properly, we would only be in that one lead case. And we would be able to do everything in that one case. 002 ★

[anything else?] I'm gonna go ahead and throw this out there. Because to me, this was way bigger. The consolidation, that's all I'm gonna say consolidated documents. I think that I'm pretty sure that that's being worked on. But that's probably the biggest headache in docket right now. 002

[how long do consolidated cases take in Dawson] Oh, my word. It depends on the judge. But let's say there's two ordered paragraphs with it, which is pretty standard and there's 10 cases. It might take me... if I'm looking over everything it might take me a good 30 minutes....Yeah, if I'm really taking my time and looking at it, just to make sure that everything is straight...if there's 10 cases. Yeah. A good 30 minutes. Yeah. 012 ★

[consolidated cases] It took me a while to get used to it. I don't know. To tell you the truth right now, I don't know that I can even tell you what a consolidated case looks like under Dawson. But once they added the multiple pages, the little gold things up next to the docket number, that made it a lot easier to see. 014

[how long do consolidated cases take in blackstone] Now, for 10 cases for Blackstone, it still would be like--now, don't get me wrong. It's not like it would work just like that. I still would have to do things in Blackstone if I had 10 cases-- But as opposed to 30 minutes, I would say probably like maybe 10 minutes. 10 minutes. Yeah. Because like I said, I'm making sure everything is matching. I check for typos and stuff like that. So I mean, that's just me. 012 ★

[tracking consolidated cases] Matter of fact, what I'm working in as a consolidated case. Okay, so the way it is right now in the upper just before the word docket, there are two gold pages. Now I don't know if that means that there are only two other cases consolidated with this case or what. [so it's not clear?] Well, no. 014

[how often do you run into consolidated cases] So I would say that at least one or two? I would like at least one a week, at least one. If it's not one, it's two. But there are days where I get like, one big consolidated case that I have to deal with, or like a case of three, which isn't that bad. But maybe I would say one every week or one or two every other week. I'll put it that way. Yeah, cuz every digit is different. So it really just depends on like, on your digit for real. 012

[consolidated cases] Not gonna lie. Yeah, that strikes a nerve. Because Oh, my gosh, consolidated cases. So in Blackstone the way we consolidated cases was... it was easier than we do it now I'll put it that way. Now like when we do consolidate, consolidated cases, we have to do it in every single case versus in Blackstone, there was a way where if we type in a docket number that goes with that consolidated case, it automatically gets linked to it. So like, say there's a case, a consolidated case, with eight or nine other cases; in Dawson, how I do it, I have two tabs --other people are different, you know, you can multitask how you how they wish-- but I have two tabs so that like I'm looking at the main case. And then I'm looking at the second case, and I'm comparing making sure everything is the same. And then I'm literally doing it again, for the next three or four, however many cases are with that case, to make sure that it all lines up. 012 ★

For some users, having tabs appears disorganized. It was noted that it may be preferable to see all options for cases and use a filter rather than have them separated by tabs.

Tab design in DAWSON can be nonintuitive and lead to frustration

I think the only thing in DAWSON that can be a little frustrating is you click on something then you got to click on the tab to get to what you're looking for, and everything is like a tab, under a tab under a tab. But I think I've kind of gotten used to it now.

002 ★

[Dawson Tab structure] That's fine with me... 014

[thoughts on Tabs structure] Honestly, before like, when Dawson was first made, and we were trying to get used to it I did find that it was a lot of clicking because in Blackstone, everything was just on one page. It was so weird, like we had, yeah, multiple tabs. Don't get me wrong, we did have multiple tabs. But as far as like, all the information that we needed to access to process in order was on one page. So but now that I'm used to Dawson, it's just like, literally clockwork, like I know what to click, I know where to go. It's basic. So I actually prefer it the way it is now versus I mean, yeah, it's fine, because I got used to it. So I don't find that it's hard. 012 ★

[when asked if filters preferred over tabs] Exactly. Yep. 002

[filters or tabs?] I think with filters, I think that would be a really good suggestion. Yeah. Like, I don't know why I didn't think about that. But yeah, that's what I was trying to say was the Blackstone, like different filters. Yeah, that would be cool. That'd be a really cool option. 012 ★

[how would you prefer to see tabs] I feel like I prefer to see everything, but that's just me. But I guess I get it because it's a little bit more organized. And I guess, but I would prefer to see everything all at once and I can have my I can look at my options and choose from there. 002 ★

Respondents or petitioners sometimes do not send in their entries which can delay the sealing process

Challenges outside of the UI

[least liked] I don't think it's anything in regards to being able to seal and unseal, it's just all the other stuff that goes with having to do so. Like orders and motions and stuff behind having to seal but the actual sealing of things is pretty easy. That other stuff is just what goes along with having to seal a document or seal the case like the motions or orders. That stuff is not going to change. 002

Only [run into issues during sealing process] if the entries are not sent in by a respondent or petitioner. That's what we get issues from, but not really with the systems. I mean, we seal things and unseal things so that would be on us.

006 ★

Sealing cases is time consuming and challenging as it requires clerks to go in with a very fine-toothed comb. It is considered one of the lesser liked tasks.

Sealed cases take more time

[sealed vs unsealed cases] The sealed cases take more time, because you have to be very careful about-- because sometimes, a document will come in from a party and it may not be fully redacted. And you know, in terms of figures and things like that, of course, I don't know if you know what a whistleblower is, but a whistleblower is blowing the whistle on somebody else for not paying their taxes. So that information is redacted from what the public is allowed to see. 014 ★

[least liked] All of it [sealing cases]. None of it. Most of us don't like seal cases. Yeah, there's not a lot I really like about sealed cases, because they take a whole lot longer to deal with. Because you're having to check for more information than you do on a regular document, you have to be a little bit more careful as to what is contained in that document in a sealed case, as opposed to a regular case. The case I was working on this morning, and it doesn't make any difference it only shows two sheets up there in terms of consolidation, because this case has about six. 014

Note: This information still needs to be reviewed; Thinking of a process map as another project here

Background

Position and time working at Tax Court

I work for the DACA section here at the Tax Court have been here for, I guess, over five years. 006

Sure. So I am a docket clerk. I've been working in this position since 2016. 002

Yeah, sure. So I'm a docket clerk, I've been at the tax court since 2014. And I started off in records and then went to petitions, I went to the different, you know, calendar, different offices of the tax court over time, just to get the experience and to get experience and to progress throughout the tax court. 012

I worked in the facilities department and in purchasing and procurement. And started back in '98. 006

I've been in this position since 2016. But I've been with the Tax Court since 2015. Before I was a records clerk. 002

[previous roles] I Worked in records 014

I am a docket clerk. I have been a docket clerk I think for about eight years, I've been with the court for 12 years, next week. 014

I started off as a records clerk. And then I went and became a petitions clerk, and then a calendar clerk. And so I've been a docket clerk for... about four years now? And then I believe I made my transition in 2017. So it's been about four years. 012

Dockett clerks don't often encounter sealed cases

[how often encounter sealed cases] it's like, maybe 10% of the cases we get are still like in a W case, like a whistleblower or something like that. So it's not that many, but when they are, when they do come in, you have to definitely take a look at everything and go a real fine toothed comb, So about 10%.

006

[how often get whistleblower cases] I'm not sure if I've run into any so far this year. But actually, I have I just can't [remember]. Probably because we're not in the office and things have become so different because of Dawson, we haven't seen-- a lot of docket clerks themselves haven't seen a lot of that. It's been handled more by the supervisors at this point. But I'd say on a normal basis, I mean, just regular filings and things like that, I'd say probably, you know, at least one or two a day. 014

Daily Tasks

I process documents sent in by respondent and petitioners online, and also file the ones that they send in, in paper, process orders from the judges. 006

And I don't even know how to explain, we do a lot. But in so many words we make sure that the documents filed are filed correctly, in a court with the Tax Court procedures. 002

That means we file and QC electronic documents as well as paper documents. And we also send documents to the judges and the chambers and to the council that we have, and they look at it and they might send us like orders and stuff like we process those. 002

So now working in docket, that's where we do the brunt of the work. That's where all of the judge's orders get processed, anything that the judges want the parties to know about, that's what we do. So we essentially [do] quality checks, the work that comes from chambers to be served to the petitioners. So that's why it's really important for us to have certain functions to be able to do exactly what the judges want us to do, versus maybe like a workaround.

012

I started with Blackstone, we used it in records. And then when I came up, we just used it differently in docket than we did it records, but I understood Blackstone, it was good. 002

And we send documents out to the petitioners. So that's the majority of what we do, but it's a lot of details. 002

Docket clerks encounter sealed documents often

[how often encountered sealed documents in blackstone] Quite a bit. Honestly. When we were physically at the tax court, I came across sealed documents more, and it was more of like a-- I don't wanna say tasking job-- but it just seemed like it was a little bit more steps because we actually saw the documents like, if they were sealed, we saw them come from records in like a sealed envelope like we visually saw them. 012

Majority of sealed cases are whistleblowers (W)

I'd say a good majority of the time, the sealed cases are whistleblower cases. And not everyone deals with those. But actually, interestingly, I was working on a whistleblower case today and yesterday, where I had to file documents that were sealed, I had to file the redacted documents right under it. 002

[how often encounter sealed cases] Almost, I'd say 99% of the whistleblower cases are sealed. If a whistleblower case comes in with a motion to proceed anonymously, the case is automatically sealed until that motion is acted on. And if the motion is granted, then we go through--and I'm not sure how this is going to work, because I haven't had to do this yet under Dawson-- but under Blackstone, what would happen is we would go back in and change the caption to read, whistleblower, whatever the docket number is, as opposed to, you know, John black versus, you know, Commissioner. And then we go through and we would put, we would redact the caption on the document and the cover page, and then add a new cover page with whistleblower on it. And we have to go through and do that every single document in the case if the motion to proceed is granted, if it's not granted, then the case is unsealed and that's that. 014

Supervisors encounter majority of the whistleblower cases

[how many whistleblower cases do supervisors see] Oh, no... They're probably seeing more than that, because what they're doing, they're the ones that up to this point that have been handling the motions to proceed anonymously, because when that motion is granted, an order is done and both parties are told to come in with redacted versions of the documents previously filed. And then what happens is, the unredacted document will stay locked and the redacted document will go right underneath it. So when they send those in, we have to pull them off of whatever--if they've added them to a status report, or a stipulation, whatever--we have to pull those documents off the back of that and put them where they belong in the record. Let's say something came in today, but let's just say a stipulation came in today and one of the things that was attached to it was the petition, and we would have to go back to where the petition was filed back in January, say, and put the redacted version underneath that. 014

Sealing considered complete after all clerks put in all entries and lock is red

Well, when we put all the entries on-- if we get an order from a judge or ADC [assistant deputy counsel]-- then after we put all the entries on, serve everything that needs to be served, then that's when everything is complete [for sealing cases]. After you've done all the entries.

006

[sealing a case process] I mean, at this point, we know it's done, because the whole thing is lit up in red, that this case is sealed. And that's when we looked at it on the... instead of being in blue. 014

Sealing Cases Process

[interaction with sealed cases] Everything that we do with the regular case, we get petitions and answers and documents, and then for our petitioners, and the attorneys, and we just have to if the whole case is sealed and everything is just put in the case regularly, but if one issue needs to be sealed, then we handle it accordingly.

006

Locking it [a case] is just, it's not all the way official it's just stopping it from being seen outside the court. Sealing it, when we seal it then internally, they will take the documents and put it in a sealed envelope, and then it's officially sealed.

006

It's the same [as interacting with unsealed cases] if the whole case is sealed, it's the same process, just put it on the record and send it up to the judge or to staff attorneys.

006

The process [between sealing and unsealing cases] is the same, but I say the reasons why could be very different. But the process is pretty much the same. Pretty straightforward. 002

[sealing a case process] Well, at this point, under Dawson, let's say a judge does an order and says that he wants this document sealed, because there is information that should not be allowed for public view. So the judge will say please seal entry number 26. Let's just say it's a stipulation of facts which may have you know all types of information in it because it also has a exhibits attached to it. So they want that stipulation of facts sealed. So then we go in, and we would click seal for the document. But right now, the only thing we can do is seal the whole case.

014

[when sealing a case] When petitioners file their petition, and they didn't redact their Statement of Taxpayer Identification Number, their social and...Maybe what happens is a petitioner called, or what they could have done is they could have sent in a paper letter. And I filed it on record. And based on that letter, I'll send it up to the attorneys. And they'll send it back saying, go ahead, or they'll send an order saying that the petition will be sealed. And so since now, we don't really have a feature to seal just individual documents, what I would do is just process that order and then I would go and seal that whole case. Yeah. And that's it. 002

[sealing a case in DAWSON] If a case is like regularly, just how it is-unsealed... So what normally seals the case is an order from the judge sealing the case. And so it says order that this case is sealed... if I need to seal a document or seal the case, I would then go to the overview section in Dawson, and then click the lock button after I'm done completely processing the order.

012

Yes, we did it [unsealed cases/documents] all the time in Blackstone, because we had the ability to seal just a document. And some documents are permanently sealed, like in the whistleblower cases, sometimes they'll file what's called a motion to proceed anonymously. And then they'll just send in the unredacted petition. So like a reference list that has all that confidential information, who the target is and the address of petitioner, stuff like that. That will remain sealed permanently, even if they one day grant the motion to proceed anonymously. And then that's when everything prior to that being file gets sealed, that wasn't already sealed and then they come in with their redacted versions. 010

[Cover page of sealed document] It would have whatever the case it. We don't have the burden of redacting the documents, because if we miss something, then you know, there would be a target on our butt. So, you know, they send in, when they are unsealing a case, usually what they do is seal everything in DAWSON because the person's name still appears on the cover page of the redacted documents. So they basically seal everything from there on out, including that order. And then they have to come in with redacted versions of everything in the file. Even if they had sent in a redacted, something, you may have a Redacted Redacted petition. 010

Sealing Cases DAWSON UI

[unsealed vs sealed] So for unsealed cases, like a regular general case, or even a judge's case, that's like assigned... there's like a sealed case has that red tab on the top to let you know, the whole case is sealed versus the regular docketed cases don't have a seal. It just looks like a regular Dawson tab. That's pretty much it, if the case is sealed, it has a red tab at the top. And then if it's regular, it doesn't. 012

[did each document have a checkbox in blackstone for sealing/unsealing] Yes, that is correct. Yes, ma'am. Right. That's correct. 012

[sealing & unsealing process the same in UI?] Yeah, exactly the same. Yeah. Exactly. Cuz in Blackstone, if we had paper service, and it was sealed, we had to do sealed service. But now, since everything is electronically served, which is great, we don't have to worry about that. So everything is exactly the same. 012

[how do know if case is sealed in DAWSON] it says... has the red, the red tab on the top. It says this case is sealed, and then it has the red tab up top. That's how we know something is sealed in Dawson currently, that's how it looks. 012

So the judge sends me an order, then I go to my messages tab, I then click the message tab. Then the Order Pops up, I see the order on my left side because I have two screens. And then on the right side, I'm typing the description of what the order says. So after I typed the description of the order, I press the serve button, the serve button sends the document out, then that's when I go ahead and change everything in the case. So then I would go to my overview portion of Dawson, then I would go to where it says seal, I would click seal. And then after that after it saves, then that red line would appear above the page, actually letting me know that the case is sealed.

012

So if I were to...just seal the document, it would be the same exact way of me going back to the overview screen. After I'm done processing the order, I would click temporarily seal, I would select the entry if there was a entry menu, like it'll say like entry one through 30 I would select entry 25 Because that would be the one I want to seal then I would save it. That's how I would seal an actual document entry if that was an option. 012

Process

Unsealing Document Process

I believe it's [unsealing a document] pretty much the same, it's definitely going to be an order done saying that basically an order, I'm trying to figure out which, what motion or what, what would be sad, but I'm not sure. But there's always something that's going to signify, okay, this is the reason why the case was open, or that this is no longer sealed. But a lot of times, like individual documents, they'll stay sealed. 002

[unsealing case process] You have to make sure everything has been redacted before. You want to see that all the names and all the social security numbers and all the sensitive material is not available to the public.

006

I don't have much experience with that [unsealing a document]. No. 002

[how often encounter an unsealed document vs. sealed] Unsealed doc, I would say, every now and then. Sealed cases they're everywhere. But unsealed documents every now and then, not not all the time. Not all the time. 002

As far as the record, everything has to be redacted [when unsealing a case] so that we can open it up to the public. So that process we have to go through every entry and make sure that everything is safe to be put on a public record.

006

[have you dealt with unsealed cases] Not as much. I have an idea of, you know, when it needs to be unsealed, like sometimes what happens with the whistleblower cases, they don't stay sealed forever. They do become unsealed, I do know that but i don't believe I've ever unsealed a case because a lot of times it's the whistleblower stuff. 002

[unsealing cases process] First of all, it's ordered by the judge and [I] make sure everything that's sealed is-- the paper is put in a seal. Paper is if the attorneys mail something into the court, as opposed to just electronically filing it.

006

Unsealing [a document] would be if we unsealed the case, when we're about to let it just be out, put it out in the public and everything has already been redacted. So that's like the process at the end, like the case has been open for a while, and we're going to unseal it. So then we're taking everything and making it available to the public.

006

[unsealing in DAWSON] No, because we can't seal just a document, the whole case has to be sealed. And until we get that, we can seal just one document and the whole case has to be sealed. 014

[sealing documents in Blackstone vs unsealing] Unsealed documents when a document comes in, we just file it and send it where it needs to go. Okay. 014

[unsealing documents in blackstone] You know what, in Blackstone, not yet, honestly, everything has literally been sealing...period. But mostly in DAWSON for my cases, I'm digit one. I have orders telling me to seal a specific entry, which is a little problematic, because now, like, say, once we do get the option to like, you know, seal and unseal, I'll have to go back to those cases that are completely sealed, and then seal the actual individual entry, because the whole record is not sealed. It's just that order telling me that entry 25 is sealed. But since now, I don't have an option to do that yet, that's why the case, the whole case is sealed. So I'm sure we have a ton of like sealed cases that aren't really sealed, but only certain documents are. 012

Unsealing a case

[Reason case may be unsealed] The case is over. And everything has already been redacted by the IRS and petitioner.

006

[unsealing case process] I haven't unsealed anything. I think that's up to the supervisors because you've go to go through each document to make sure everything is not available to the public. And right now everything is available to the public if it's on the record. I don't know if anything has been unsealed in this new system.

006

[ever unsealed a case?] Yes, not under Dawson, under Blackstone. Because we're still trying to go through all that. That's where if the motion to proceed anonymously, is granted. And that's when we go in and redact all the cover pages, and that information and then seal. The case remains sealed until we get all the redacted information in. And then all of that goes in... actually everything is sealed up and including the order that grants that motion. And then anything coming in after that is unsealed. Because that's not sealed because it has been redacted. Okay, now with that redacted document will come a reference list that tells you what those redactions were, like in a whistleblower number one would be the caption. So that would be Jack Black versus the commissioner as opposed to just whistleblower, you know,101-16. And then, you know, after all the rest of it. 014

[unsealing case] So we also need an order as well to unseal it. So again, I would go into my inbox, I would see the order in my inbox saying, see order unsealing blah, blah, blah, and then I would click on the Order, and then I would process the orders normal, same steps as before, press serve, then I would go to my overview screen, where the sealed entries are, or the sealed options are, and then click that entry and it would say unseal and then that would save it and then that would unseal the case. 012

Blackstone sealing documents was a litlte more forgiving than DAWSON

[any issues sealing documents in Blackstone] It was pretty smooth sailing, because with Blackstone, it was a little bit more forgiving. Like, say I accidentally... I locked the case where I sealed it. After I serve it, you know, I can go back. 'Oops, that wasn't supposed to be done' and undo it. And it's like as if I didn't seal it. So it was pretty forgiving. Like I would say was pretty forgiving for the most part. It wasn't hard. 012

[was it easy to undo sealing cases in Blackstone too?] Yeah. Yeah, it was I don't really recall any major flops or like discrepancies where I accidentally did something and I couldn't take it back. Yeah. No, it wasn't. It was pretty good. 012

Sealing Document Process

[Sealing a document] If the case is just opened up, we have a petitioner answer and everything and then petitioner comes in like three months later and wants to seal his case or wants to change it so nothing could be available to the public. They file a motion to seal and we'll seal the document that they sent. Then if they wanted to seal the case, we will seal it just until the motion is acted on by a judge or staff attorney. So the case isn't necessarily sealed, it's just locked until the motion is acted on.

006

[does judge ask seal entire case or just documents]I have seen them seal an entire case but usually, it's documents. The only time that I would say that a whole case is sealed is if a whistleblower is asked to proceed anonymously...it stays sealed, until that motion is acted on. 014

It [sealing documents in blackstone] was still straightforward as well, because we still had boxes and options on the bottom of our screen that basically was like our dashboard. So it's like what we could do on the bottom. So like, for instance, I pull up the docket number in Blackstone. In Blackstone, the way we knew a case was sealed is that it had a red lock in the upper right hand corner and it was actually small. So the way we have it in Dawson is a lot better because we're like, oh, wait, this case is sealed,there's a red tab. Whereas in Blackstone, we had to look for it. So it's right there in the upper hand corner, we had a red lock. I would click the order that the judge sends me in my inbox. And then I would type out the description 'order that this case is sealed'. And like I said, the dashboard underneath, we had like, sealed entry, it was like a box we checked, and that's what indicated that we are sealing that entry. And then after we sealed the entry from that point, there was a serve section where we type in the serve date. And then there was a save option and we saved it. And that's how it was on the record at that point. 012

[sealing documents in Blackstone vs unsealing] I mean, the sealed document and a regular case, you know, it comes in judge tells you to seal it, you seal it. And that's it... ADC takes care of putting it in a sealed file and where it's kept in a special place down on records...

014

But the way we process them [sealed documents in Blackstone] was the same exact way we do as far as step-wise. Like with the judge sending me an order and then me sealing it, it was the same way, like that same process of the judge sending me the order then I go on Blackstone. 012

[when would you want just a document sealed] So say that there's a reference of redacted information list in a case, and the case is not completely sealed. But that information is unredacted so we want it to be protected. So in DAWSON if we wanted to seal that we couldn't, because we don't have that option, we can only seal the case for that one document that needs to be sealed. 012

[sealing a document with judges orders] if it says order that these documents are sealed in Blackstone, if it was a document, we would then have that option that says- - the lock option-- we would select the lock option next to the document. That's how we would do it in Blackstone. But for Dawson, if I need to seal a document or seal the case, I would then go to the overview section in Dawson, and then click the lock button after I'm done completely processing the order. 012

ADCs involvement

[what's ADC] Assistant Deputy counsel. What they do is they work underneath the chief judge and their lawyers...In the general docket everything that is not assigned to a judges is in general docket and everything in general docket is under the chief judge. So they take care of all of that information. And just like each us docket clerks are assigned a digit so are the council in the Counsel's Office. My person has two digits two and seven, two is mine and seven belongs to one of the other clerks. One of the council has three digits. Another counsel only has one because he's new. But [name] has two and [name] has two. 014

Receiving Orders from Judge via Notifications in inbox

[notification for orders] So I would look at my inbox it would say I have like 10. Then I would see the judges message in my inbox, click on the message, then that's when I would see the judge would say see order sealing case, then that's when I would click on that order. And my two screens will pop up where I have the order on the right and then my description on the left, because I have two screens, and then I would type it that way. 012

[orders in inbox] It's actually pretty easy in the inbox section, the way that Dawson had it set up is actually really straightforward. I mean, you just need a basic reading level to see...that it's there, like, Oh, this is what I need to do. It's really... not hard at all. 012

Paper Service

I mean, well, not everything [is electronic], there are paper documents that do get served out, but in sealed cases, specifically, respondant is getting served those documents instead of like them getting paper service. 012